

[doc. web n. 10070348]
Provision of July 17, 2024
Register of provisions
No. 467 of July 17, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the report from the Bologna Police Headquarters -
Administrative and Security Police Division, transmitted with note dated 7.7.2023, which reports
a control carried out on 4.7.2023, together
with personnel from the Bologna Labor Inspectorate, at the public establishment named "The Lull
Bar", managed by Mark s.r.l.s., located in Bologna,
Via Marco Emilio Lepido 221/a, where the presence of a
surveillance system consisting of 10 cameras was confirmed, 5
positioned inside and 5 outside the aforementioned
commercial establishment, lacking the relevant
signage;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. The report received and the initiation of the
proceeding.

With a note received on 7.7.2023, the Bologna Police Headquarters - Administrative and
Security Police Division, sent this Authority the report
drawn up following a control carried out on 4.7.2023, together with personnel from the Bologna Labor
Inspectorate, at the public establishment named "The Lull Bar", managed by Mark s.r.l.s. (hereinafter,
the "Company"), located in Bologna,
Via Marco Emilio Lepido 221/a, where the presence of a
surveillance system consisting of 10 cameras was confirmed, 5
positioned inside and 5 outside the aforementioned
commercial establishment, lacking the relevant
signage.

Following a specific request to the aforementioned
Labor Inspectorate regarding the verification
of irregularities related to compliance with the guarantees
provided for in Article 4 of Law No. 300/1970 (so-called
Workers' Statute), the Inspectorate, with a note dated

12.3.24, responded to the Guarantor stating that during the inspection checks “the presence of a surveillance system was detected installed without the legal authorization provision, in violation of Article 4 of the Workers' Statute” and that “within the terms provided by the concurrent report of prescription ex Legislative Decree No. 758/94, the offender submitted a specific request and obtained the authorization provision for the installation of the system in question, thus eliminating the irregularity detected with subsequent payment of the prescribed amount”.

Therefore, the Office, with a note dated 20.3.2024 (prot. No. 34675), proceeded to notify Mark s.r.l.s., the act of initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 5, paragraph 1, letter a), 13 of the Regulation and 114 of the Code.

With a note received on 16.4.2024, the Company sent defensive writings stating that it had installed “signage indicating surveillance areas (...) in several points of the premises” without, however, providing photographic documentation proving the claims made.

Attached to the aforementioned note, the Company produced a copy of the authorization act for the installation of the surveillance system at its premises located in Bologna, Via Marco Emilio Lepido 221/a, issued by the Territorial Labor Inspectorate of Bologna (prov. No. 21030 of 20.7.2023).

2. The legal framework of the processing carried out
The use of surveillance systems can result, in relation to the positioning of the cameras and the quality of the images captured, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, with the principle of transparency which presupposes that “data subjects must always be informed that they are about to enter a surveillance area”.

To this end, the data controller must place suitable informative signs according to the indications contained in point 3.1. of the provision on surveillance - April 8, 2010

[1712680] (in this sense also the FAQs on surveillance, published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing

of personal data through video devices, point 7) specify that “Regarding surveillance, the most important information

must be indicated [by the controller] on the warning sign itself (first level), while additional mandatory details can be provided

by other means (second level). The guidelines also provide that “Such information can

be provided in combination with an icon to give, in a clearly visible, intelligible, and legible manner, an

overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information should be adapted to various locations. The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) "to enable the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary."

The processing of personal data carried out within the employment relationship, if necessary for the purpose of managing the relationship itself (see Articles 6, paragraph 1, letter c); 9, paragraph 2, letter b) of the Regulation), must take place in compliance with the general principles indicated by Article 5 of the Regulation, and in particular the principle of lawfulness, according to which processing is lawful if it is in accordance with applicable sector regulations (Article 5, paragraph 1, letter a) of the Regulation). Consistent with this approach, Article 88 of the Regulation has preserved national rules of greater protection ("more specific rules") aimed at ensuring the protection of the rights and freedoms regarding the processing of personal data of workers. The national legislator has approved, as a more specific provision, Article 114 of the Code, which among the conditions for the lawfulness of processing has established compliance with the provisions of Article 4, Law No. 300 of May 20, 1970. The violation of Article 88 of the Regulation is subject, if the requirements are met, to the application of an administrative pecuniary sanction pursuant to Article 83, paragraph 5, letter d) of the Regulation.

According to the aforementioned Article 4, Law No. 300 of 1970, video surveillance systems, if they provide "also the possibility of remote monitoring" of employees' activities, "may be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets," and their installation must, in any case, be carried out following the conclusion of a collective agreement with the unitary trade union representation or with the company trade union representatives or, if it has not been possible to reach such an agreement or in the absence of representatives, only if preceded by the issuance of a specific authorization from the Labor Inspectorate.

The activation and conclusion of this guarantee procedure is therefore an indispensable condition for the installation of video surveillance systems. The violation of this provision is subject to criminal sanctions (see Article 171 of the Code). The processing of personal data carried out by the company through the video surveillance system is therefore unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a), 13, and 114 of the Code.

3. The outcome of the investigation and the sanctioning procedure.

Based on the findings made, it emerged that, at the time of the inspection, the video surveillance system installed at the operational headquarters of Mark s.r.l.s. located in Bologna, Via Marco Emilio Lepido 221/a, was active and functioning, that no sign bearing the information referred to in Article 13 of the Regulation was posted, and that the guarantee measures provided for by Article 4 of Law No. 300/1970, referred to in Article 114 of the Code, had not been adopted concerning the presence of employees in the monitored premises.

In this case, it is therefore proven that personal data processing was carried out through a video surveillance system in the absence of the prescribed information. This conduct is in contrast with what is established by Article 13 of the Regulation, according to which the data controller is required to provide the data subject with all the information regarding the essential characteristics of the processing.

Furthermore, considering that the installation of the video surveillance system had not been previously authorized by the Labor Inspectorate (the authorization decision from the Labor Inspectorate of Bologna is dated July 27, 2023, while the inspection took place on July 7, 2023), the processing was also carried out in violation of Article 114 of the Code concerning the protection of personal data.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation.

The processing of personal data carried out by the Company is therefore unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a) (principle of transparency), 13 (information) of the Regulation, and 114 of the Code concerning the protection of personal data.

The violation established in the terms of the motivation cannot be considered "minor," taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

Although the party, in the defense memoranda, stated that it had posted the information sign, it did not send any documentation proving the claims made.

Therefore, having established the unlawfulness of the conduct as described above, it must:

- order the data controller, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to proceed with the application of suitable signs bearing...

the information on processing as indicated in point 2 of this provision where it has not already been provided;

- to adopt an injunction order pursuant to art. 58, par. 2, lett. i) of the Regulation for the application of an administrative pecuniary sanction.

5. Injunction Order.

The Authority, pursuant to art. 58, par. 2, lett. i) of the Regulation and art. 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation, by adopting an injunction order (art. 18, law 24 November 1981 no. 689), in relation to the processing of personal data carried out by the company through the video surveillance system, the illegality of which has been established, as outlined above, in relation to arts. 5, par. 1, lett. a), 13 of the Regulation and art. 114 of the Code.

With reference to the elements listed in art. 83, par. 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate and dissuasive in each individual case" (art. 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

with regard to the nature, gravity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to comply with the obligation to provide information to the data subjects;

the absence of specific previous violations by the company related to breaches of the data protection regulations;

the circumstance that the Company, as the data controller, despite having sent defensive writings to the Authority, attaching documentation certifying the authorization for the installation of the system by the Territorial Labor Inspectorate of Bologna, has not demonstrated compliance with the legal obligation regarding the placement of suitable information signs.

It is also considered that the economic conditions of the offender, determined with reference to the financial statements for the year 2023, are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (art. 83, par. 1, of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to set the amount of the pecuniary sanction at €5,000.00 (five thousand) for the violation of arts. 5, 13 of the Regulation and 114 of the Code.

In this context, also considering the type of violation established, it is deemed necessary, pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Authority's regulation no. 1/2019, to proceed with the publication of this provision on the Authority's website.

Finally, it is noted that the conditions referred to in art. 17 of regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

declares, pursuant to arts. 57, par. 1, lett. f) and 83 of the Regulation, the illegality of the processing carried out by Mark s.r.l.s. through the use of the video surveillance system installed at its premises located in Bologna, Via Marco Emilio Lepido 221/a, as outlined in the reasoning, for the violation of arts. 5, 13 of the Regulation and 114 of the Code;

ORDERS

Mark s.r.l.s. P.I. 03643011202, with registered office in Bologna, Via Dei Mille 24, to pay the sum of €5,000.00 (five thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

ENJOINS

the same Mark s.r.l.s. to comply, pursuant to art. 58, par. 2, lett. d) of the Regulation, with the processing of data carried out in accordance with the provisions of the Regulation, with reference to the placement, where it has not already been done, of suitable information signs regarding the presence of cameras;

therefore, the same Mark s.r.l.s. is to pay the sum of €5,000.00 (five thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement acts pursuant to art. 27 of law no. 689/1981. It is represented that pursuant to art. 166, par. 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the attachment – an amount equal to half of the imposed sanction within the deadline referred to in art. 10, par. 3, of legislative decree no. 150 of 1 September 2011 provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Authority's regulation no. 1/2019, the publication of this provision on the Authority's website and considers that the conditions referred to in art. 17 of regulation no. 1/2019 are met.

Pursuant to art. 78 of the Regulation, arts. 152 of the Code, and 10 of legislative decree 1 September 2011, no. 150, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, 17 July 2024

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei